**UNITED STATES TAX COURT**

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| Walter Jesse Lawrence | ) | |
| | ) | |
| Petitioner, | ) | |
| | ) | |
| v. | ) | Docket No. 20370-09 |
| | ) | |
| COMMISSIONER OF INTERNAL REVENUE, | ) | |
| | ) | |
| Respondent. | ) | |

**PETITION**

1. Please check the appropriate box(es) to show which IRS NOTICE(s) you dispute: [x] Notice of Deficiency. [ ] Notice of Determination Concerning Collection Action. [ ] Notice of Determination concerning Your Request for Relief From Joint and Several Liability. [ ] Notice of Determination Concerning Worker Classification.

2. Provide the date(s) the IRS issued the NOTICE(s) checked above and city and State of the IRS office(s) issuing the NOTICE(s): May 29, 2009; July 1, 2009; Ogden, Utah.

3. Provide the year(s) or period(s) for the NOTICE(s) were issued: 2003, 2004, and 2005.

4. SELECT ONE OF THE FOLLOWING: If you want your case conducted under small tax case procedures, check here: [ ]. If you want your case conducted under regular tax case procedures, check here: [x] (ONE BOX). NOTE: A decision in a “small tax case” cannot be appealed to a Court of Appeals by the taxpayer or the IRS. If you do not check either box, the Court will file your case as a regular tax case.

5. Explain why you disagree with the IRS determination in this case (please list each point separately): See below Relevant Facts and argument.

6. State the facts upon which you rely (please list each point separately): See below Relevant Facts.

I.

As provided for in Tax Court Rule 34(b)(4) and (5), 26 U.S.C. foll. § 7453, which provides that the petition in a deficiency action shall contain "[c]lear and concise assignments of each and every error which the petitioner alleges to have been committed by the Commissioner in the determination of the deficiency or liability" and "[c]lear and concise lettered statements of the facts on which petitioner bases the assignments of error," Petitioner now provides in this petition the "[c]lear and concise assignments of each and every error which the petitioner alleges to have been committed by the Commissioner in the determination of the deficiency or liability" and "[c]lear and concise lettered statements of the facts on which petitioner bases the assignments of error," and "clear and concise lettered statement of the facts on which petitioner bases the assignments of error."

**II. Introduction of Credible Evidence**

Petitioner alleges the introduction of credible evidence with respect to any factual issue relevant to ascertaining the Commissioner/Respondent/Secretary's alleged liability of petitioner for any tax imposed by subtitle A or B of title 26. Petitioner has complied with requirements, if any, under title 26 to substantiate any item. Petitioner has maintained all records require under title 26 and has cooperated with reasonable requests by the secretary for witnesses, information, documents, meetings, and interviews. However, petition will add that neither the Commissioner nor the Respondent nor the Secretary has requested from petitioner, reasonable or otherwise, "…witnesses, information, documents, meetings, [or] interviews," thereby precluding any evidentiary tie between the parties. Petitioner'

credible and admissible evidence that petitioner introduces are the Commissioner's May 19, 1999, Notice of Levy and the Order of the United States Bankruptcy Court, Northern District of Florida, Tallahassee, case no. 01-70047-TLH2, entered on the eighth (8th) day of May, 2001. Thus, petitioner has introduced credible evidence with respect to each and every factual issue in determining that the GM/ UAW ERISA and IRC qualified pension plan payments and social security payments that were never actually nor constructively received by Petitioner for his own use where the IRS May 19, 1999, Notice of Levy restricted petitioner from having complete dominion and control over those payments constitutes income to Petitioner. Exhibits "E", "F".

The Tenth Circuit Court of Appeals in the case of *Rendall v. Commissioner*, 535 F.3d 1221, (CA10, 2008), held that: "[C]redible evidence,' as used § 7491(a) means 'the quality of evidence, which after critical analysis, the court would find sufficient upon which to base a decision on the issue if no contrary evidence were submitted." Here, the "credible evidence" is the order of the: (1) United States Bankruptcy Court, Northern District of Florida, Tallahassee, case no. 01-70047-TLH2, entered on the eighth (8th) day of May, 2001; (2) the IRS May 19, 1999, Notice of Levy. These "credible evidence" documents are attached to Petitioner's Motion to Amend Petition and are incorporated herein by reference as though fully stated. Thus, petitioner claims that the burden of proof has shifted to the Respondent under section 7491(a) and that petitioner ha satisfied herein the requirements of section 7491(a)(1), (2) and Tax Court Rule 142.

## III. Facts on Which Petitioner Bases the Assignments of Error Petitioner Alleges to Have Been Committed by the Commissioner in the Determination of the Alleged Deficiency and Liability

A. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden

of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, on May 19, 1999, the Commissioner/Respondent/Secretary issued a Notice of Levy. The Commissioner/Respondent/Secretary has used and is using the May 19, 1999, Notice of Levy as a restrictive document to restrict petitioner from having complete dominion and control over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments. The Commissioner/ Respondent/Secretary has used May 19, 1999, Notice of Levy, which is credible evidence, as an instrument to determine an income tax deficiency liability against petitioner for each of the tax years 2003, 2004, and 2005. As a result of execution of this restrictive document to restrict petitioner from having complete dominion and control over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments has thus resulted in the Commissioner/Respondent/ Secretary's acts being invalid, arbitrary and capricious.

B. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, starting with the May 19, 1999, Notice of Levy executed by Commissioner/Respondent/ Secretary's on petitioners GM/UAW ERISA and IRC qualified pension plan payments and social security payments has been ordered barred by the United States Bankruptcy Court, Northern District of Florida, Tallahassee, case no. 01-70047-TLH2, entered on the eighth (8th) day of May, 2001. The list of exemptions referred to in that order, which is credible evidence, includes "Debtor's interest in the GM/UAW Pension Plan Payments" and "Social Security Payments" which are "Debtor's exemption claimed in Schedule C of [Petitioner's Bankruptcy Court] petition" were automatically granted when there was no objections to those

claimed exemptions within thirty days of the completion of the section 341 meeting of the creditors.“ constitutes the violation of the eighth (8th) day of May, 2001, order an order which involved “Debtor’s interest in the GM/UAW Pension Plan Payments” and “Social Security Payments.” See attached exhibits “E” and “F”.

C. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, the subsequent to issuance of the IRS Notice of Levy dated May 19, 1999, the IRS served as an instrument to execute the Notice of Levy on petitioner’s interest in the GM/UAW ERISA and IRC qualified pension plan payments and social security payments which included the tax years involved here, 2003, 2004, and 2005.

D. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example at no time has petitioner ever had unrestricted dominion and control over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments as those payments relate to the IRS Notice of Levy dated May 19, 1999, and the execution of that Notice of Levy over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments for the tax years 2003, 2004, and 2005.

E. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, based

on the execution of the restrictive document, Notice of Levy dated May 19, 1999, petitioner had no guarantee that he would be entitled to enjoy complete dominion and control over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments since that Notice of Levy dated May 19, 1999, was first executed on or near May 19, 1999. Thus, Respondent erred in its determination.

F. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, given that it is only income that is be included in gross income for the tax years 2003, 2004, and 2005 and given that petitioner has been denied complete control and dominion over the GM/UAW ERISA and IRC qualified pension plan payments and social security payments, the restrictive nature of the Notice of Levy dated May 19, 1999, which is credible evidence, has barred petitioner from actually or constructively receiving any income nor an income tax liability for each of the years 2003, 2004, and 2005.

G. Petitioner presents clear and concise lettered statement of the fact on which petitioner bases the assignments of error and in respect of which the burden of proof is on the Commissioner. The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, the burden of proof is on the Commissioner to prove with credible and admissible evidence that income although not actually reduced to petitioner’s possession and is not constructively received by petitioner in the taxable year it is credited, 2003, 2004, and 2005, to petitioner’s account set apart for petitioner, or otherwise made available so that petitioner may draw upon that income at any time so that petitioner could have drawn upon it during each of the taxable yeas 2003, 2004,

and 2005, if notice of intention to withdraw had been given. However, where, as is the case here, income has not been constructively received by petitioner given that petitioner's control of its receipt is and has been denied to petitioner by respondent since May 19, 1999, subject to the substantial limitations and restrictions of the May 19, 1999, Notice of Levy there has not been, therefore, any income. Further, the seizure by the May 19, 1999, Notice of Levy barred petitioner from any intention to withdraw the levied on the GM/UAW ERISA and IRC qualified pension plan payments and social security payments. 26 USC 6502(b) provides that the date "..on which a levy on property or rights to property is made shall be the date on which the notice of seizure provided in section 6335(a) is given." Here, that date is May 19, 1999. Thus, no intention to withdraw could have been given where here the Notice of Levy barred petitioner from withdrawing from the Commissioner/Secretary/Respondent any of the levied on GM/UAW ERISA and IRC qualified pension plan payments and social security payments.

## IV. Assignments of Error Petitioner Alleges to Have Been Committed by the Commissioner in the Determination of the Deficiency and Liability

A. The "[c]lear and concise assignments of each and every error which the petitioner alleges to have been committed by the Commissioner in the determination of the deficiency [and] liability." The assignments of error includes issues of in respect of which the burden of proof is on the Commissioner. For example, in determining that the GM/UAW ERISA and IRC qualified pension plan payments and social security payments that were never actually nor constructively received by Petitioner for his own use where the IRS May 19, 1999, Notice of Levy restricted petitioner from having complete dominion and control over those payments constitutes income to Petitioner. Page #2 of Petitioner's Petition, the Commissioner erred in determining that petitioner had any income, gross income or any income tax deficiency liability.

B. The “[c]lear and concise assignments of each and every error which the petitioner alleges to have been committed by the Commissioner in the determination of the deficiency [and] liability.” The assignments of error includes issues of in respect of which the burden of proof is on the Commissioner. For example, the Commissioner/Respondent/Secretary has failed in each of the Notices of Deficiency to meet its burden with respect to the alleged liability of petitioner for any penalty, addition to tax, or additional amount imposed by title 26.

C. The “[c]lear and concise assignments of each and every error which the petitioner alleges to have been committed by the Commissioner in the determination of the deficiency [and] liability.” The assignments of error includes issues in respect of which the burden of proof is on the Commissioner. For example, is the Commissioner/Respondent/Secretary erred

*[Pages 9 to 50 of the filed petition are not transcribed in this sample: the remaining assignments of error, the argument on the Commissioner’s authority, and the legal authorities cited there.]*

For the foregoing, petitioner prays that this Court redetermine Respondent’s alleged income tax deficiency liability and redetermine that no: (1) income tax liability deficiency exists; (2) penalty, addition to tax, or additional amount imposed by the Commissioner; and (3) that petitioner is not entitled to claim or any claim be imputed to petitioner that petitioner is entitled to any allowances, exemptions or deductions.

**ENCLOSURES:** Please check the appropriate boxes to show that you have enclosed the following items with this petition: [x] A copy of the Determination or Notice the IRS issued to you. [ ] A (Statement of Taxpayer Identification Number (Form 4)). [ ] The request for Place of Trial (Form 5). [ ] The filing fee.

Dated: October 19, 2009

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Walter J. Lawrence
Petitioner in pro per
[mailing address redacted in sample]
[telephone redacted in sample]